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NATURE OF PROCEEDINGS: Hearing on Defendants'

Demurrer to Plaintiffs' Complaint and Motion to Strike Portions of Plaintiffs'
Complaint

Defendants' Demurrer to the Complaint is overruled.

Defendants' Motion to Strike is denied.

BACKGROUND

Plaintiffs Hendry Holloway, Ivers Holloway, Vance Holloway, Ashford Grantham, and Garrick Grantham Holloway, a minor, by and through his guardian ad litem, Ivers Holloway (collectively, Plaintiffs), filed this action against 427 Ivory LP and Zephyr Jetstream Company LLC (collectively, "Defendants"), the owners and managers of the residential property where Plaintiffs resided (the Subject Property). Plaintiffs allege that Defendants failed to remediate substandard and dangerous conditions at the Subject Property throughout their tenancy, including a persistent cockroach infestation, recurring mold, repeated ceiling leaks and water intrusion, two incidents in which a shower door shattered on a Plaintiff, exposed electrical outlets, and defective flooring, and that Plaintiffs were forced to vacate the Subject Property as a result.

The causes of action in the Complaint are: (1) Breach of Contract; (2) Breach of the Implied Warranty of Habitability; (3) Nuisance; (4) Negligence; (5) Intentional Infliction of Emotional Distress; (6) Wrongful Eviction; and (7) Violation of the Los Angeles Tenant Anti-Harassment Ordinance.

Defendants filed a Demurrer with Motion to Strike portions of the Complaint. Plaintiff did not file an Opposition.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or the facts alleged.” [Citation.]” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) As such, courts assume the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) [s]trike any irrelevant, false, or improper matter inserted in any pleading....” (Code Civ. Proc., § 436.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

ANALYSIS

I. Intentional Infliction of Emotional Distress

Defendants demur to the fifth cause of action on the ground that the Complaint alleges only a habitability dispute and does not plead conduct sufficiently extreme and outrageous to support a claim for intentional infliction of emotional distress.

To state a claim for intentional infliction of emotional distress, a plaintiff must allege (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (Christensen

v. Superior Court (1991) 54 Cal.3d 868, 903.) Conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Ibid.) Whether conduct is outrageous is usually a question of fact. (So v. Shin (2013) 212 Cal.App.4th 652, 672 (So).)

A tenant may state a claim for intentional infliction of emotional distress against a landlord. In *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, a tenant sued the owners and managers of her rented premises for damages arising from dilapidated and unsafe conditions, alleging that the defendants' failure to correct the defective conditions was knowing, intentional, and willful. (Id. at pp. 911-913.) The Court of Appeal held that the availability of a remedy for breach of the implied warranty of habitability does not preclude a tenant from suing the landlord for intentional infliction of emotional distress where the landlord's acts are extreme and outrageous and result in severe mental distress, and that the tenant's allegations of a knowing and willful failure to repair were sufficient to meet the test of outrageous conduct. (Id. at pp. 921-922.)

Here, the Complaint does not rest on a conclusory characterization of Defendants' conduct. Plaintiffs allege that they repeatedly notified Defendants of specific dangerous conditions throughout their tenancy and that Defendants knowingly refused to remediate them. Plaintiffs allege that Defendants refused to abate a cockroach infestation for years (Compl. ¶ 19); that Defendants responded to visible mold by painting over it and thereafter repeatedly refused to remediate it (Compl. ¶ 20); that Defendants ignored recurring ceiling leaks, including one so severe that emergency services were required and the living room was rendered unusable for approximately five months without alternative housing (Compl. ¶ 21); that a shower door shattered on two Plaintiffs on separate occasions after Plaintiffs had repeatedly warned Defendants that the shower door railings were unstable and unsafe (Compl. ¶ 22); that Defendants left electrical outlets exposed and unremedied (Compl. ¶ 23); and that Defendants knew the flooring was defective and unsafe yet refused to repair it (Compl. ¶ 21). Plaintiffs further allege that these conditions caused them severe emotional distress and forced them, including a minor child, to vacate the Subject Property. (Compl. ¶¶ 24, 31-34.)

These allegations describe a knowing and willful refusal to remediate dangerous conditions over a period of years, not the isolated failure to repair characteristic of an ordinary habitability dispute. As in *Stoiber*, Plaintiffs allege a knowing, intentional, and willful failure to correct

defective and dangerous conditions resulting in severe mental distress. Whether that conduct is sufficiently outrageous is a question of fact that cannot be resolved on demurrer. (So, supra, 212 Cal.App.4th at p. 672.) Defendants' reliance on Hughes v. Pair (2009) 46 Cal.4th 1035, in which the defendant's isolated offensive remarks were held not outrageous as a matter of law (id. at pp. 1050-1051), does not aid them, because the Complaint alleges a sustained course of conduct rather than a discrete offensive statement.

Accordingly, the Demurrer to the fifth cause of action is overruled.

II. Violation of the Los Angeles Tenant Anti-Harassment Ordinance

Defendants demur to the seventh cause of action on three grounds: that the Los Angeles Tenant Anti-Harassment Ordinance reaches only intentional harassment undertaken to drive a tenant from the property, and that a failure to make repairs cannot constitute harassment; that Plaintiffs have not alleged conduct directed at them specifically, absent any allegation that other tenants' complaints were treated differently; and that, because the ordinance carries criminal penalties, Plaintiffs must plead more than negligence.

The Los Angeles Tenant Anti-Harassment Ordinance defines tenant harassment as "a landlord's knowing and willful course of conduct directed at a specific tenant or tenants that causes detriment and harm, and that serves no lawful purpose." (L.A. Mun. Code, § 45.33.) The ordinance enumerates categories of conduct constituting harassment, including the failure to perform and timely complete necessary repairs and maintenance required by federal, state, county, or local housing, health, or safety laws. (Ibid.)

Defendants' premise that the ordinance reaches only conduct undertaken to drive a tenant from the property is incorrect. The ordinance contains no such requirement. It enumerates a landlord's failure to timely perform legally required repairs and maintenance as a form of harassment, requiring that the conduct be a knowing and willful course of conduct directed at a specific tenant, causing detriment and harm, and serving no lawful purpose. (L.A. Mun. Code, § 45.33.) Nor must Plaintiffs allege that Defendants treated other tenants differently. The ordinance only requires that

the conduct be directed at an identified tenant, not that the tenant have been singled out from others left unaffected. Defendants are correct that the ordinance requires more than negligence, as it applies only to a knowing and willful course of conduct. However, that higher standard is met here.

The Complaint alleges that the Subject

Property was subject to the ordinance and that Defendants violated it by refusing to perform requested repairs. (Compl. ¶¶ 43-44.) Read with the incorporated allegations, the Complaint alleges that Plaintiffs repeatedly notified Defendants of specific substandard conditions in their unit and repeatedly requested repairs, and that Defendants refused to remediate those conditions over the course of the tenancy. (Compl. ¶¶ 17-24.) It alleges, for example, that Defendants responded to Plaintiffs' mold complaints by painting over the mold rather than abating it, and that Defendants refused to repair the shower door railings after Plaintiffs reported them as unstable and after the door twice shattered on occupants. (Compl. ¶¶ 20, 22.) Those allegations describe conduct directed at Plaintiffs, because the refusals were responsive to Plaintiffs' own notices and operated on the specific conditions of Plaintiffs' tenancy, rather than an undifferentiated neglect aimed at no identified tenant. They further describe a knowing and willful course of conduct because Defendants refused to act despite repeated notice over a period of years, and, taken as true, they support the inference that the refusals served no lawful purpose. The alleged failure to remediate conditions rendering the unit substandard under Civil Code section 1941.1 and Health and Safety Code section 17920.3 falls within the ordinance's enumerated category of a failure to timely perform necessary repairs and maintenance required by law. (L.A. Mun. Code, § 45.33.) The allegations are sufficient to state a claim. Accordingly, the demurrer to the seventh cause of action is overruled.

MOTION TO STRIKE

Defendants move to strike Plaintiffs' allegations and prayer for punitive damages (Complaint, ¶¶ 35, 41, and Prayer ¶ 3), the allegations comprising the fifth cause of action (Complaint, ¶¶ 31-34), a portion of the seventh cause of action (Complaint, ¶ 44), and the prayer for statutory damages (Prayer ¶ 4), on the grounds that the punitive damages allegations are unsupported by specific facts and that the nuisance cause of action is duplicative of the negligence cause of action.

I. Punitive Damages

A claim for punitive damages must be supported by specific factual allegations of oppression, fraud, or malice; conclusory characterizations of a defendant's conduct are insufficient. (Civ. Code, § 3294; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) To state a prima facie claim for punitive damages, a complaint must allege the elements set forth in Civil Code section 3294. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) "Malice" means conduct intended to cause injury to the plaintiff, or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Civ. Code, § 3294, subd. (c)(2).) Something more than the commission of a tort is required; there must be circumstances of aggravation or outrage, such as spite or malice, or a conscious and deliberate disregard of the interests of others. (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894-895.)

The punitive damages allegations are not subject to being stricken. A tenant's action against the owners of residential property for failure to remedy defective living conditions may support a claim for punitive damages. (*Stoiber v. Honeychuck*, supra, 101 Cal.App.3d at p. 921; *Rivera v. Sassoon* (1995) 39 Cal.App.4th 1045, 1046.) As set forth above, the Complaint alleges that Defendants had actual, repeated notice of dangerous conditions at the Subject Property, including a shower door that had already shattered on a Plaintiff and flooring known to be defective, and that Defendants nonetheless refused to remediate those conditions over a period of years. (Compl. ¶¶ 17-24.) Read as a whole, those allegations supply the specific facts of despicable conduct carried on with a willful and conscious disregard of Plaintiffs' safety that Civil Code section 3294 requires. The punitive damages allegations do not rest solely on the statutory labels in paragraphs 35 and 41, but on the incorporated factual allegations that Defendants knew of specific dangerous conditions and refused to remediate them over a period of years. Defendants' authorities, which address pleadings that merely recite the statutory language without supporting facts, are therefore inapposite. Accordingly, the Motion is denied as to the punitive damages allegations.

II. Statutory Damages

Defendants move to strike the prayer for statutory damages on the same theory they advance against the punitive damages allegations, contending that the Complaint pleads only conclusory conduct and therefore fails to allege facts sufficient to support a statutory penalty. The premise is mistaken. A prayer for a statutory penalty is subject to being stricken only when the cause of action that authorizes the penalty is not adequately pleaded. The prayer for statutory damages is supported by the seventh cause of action, which authorizes a statutory penalty. (L.A. Mun. Code, § 45.35.) The penalty the ordinance authorizes turns on a violation of the ordinance, not on the malice, oppression, or fraud that Civil Code section 3294 requires for punitive damages, so Defendants' reliance on the punitive damages standard is misplaced. For the reasons stated above, in overruling the demurrer to the seventh cause of action, the Complaint adequately alleges a violation of the ordinance, and well-pleaded facts therefore support the prayer for statutory damages. The related request to strike the portion of paragraph 44 alleging that Defendants intentionally disturbed a tenant's peace and quiet fails for the same reason. Accordingly, the Motion is denied as to the prayer for statutory damages.

III. Nuisance

The Motion also challenges the nuisance cause of action as duplicative of the negligence cause of action. Duplicativeness is not a proper basis for a motion to strike. The Court may strike only "irrelevant, false, or improper matter inserted in any pleading." (Code Civ. Proc., § 436, subd. (a).) The predecessor statute authorized striking redundant matter, but that authority was eliminated, and redundancy, "if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment." (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 890; see Civ. Code, § 3537 ["Superfluity does not vitiate"].) Accordingly, the Motion is denied as to the nuisance cause of action.

Accordingly, the Motion to Strike is denied.

CONCLUSION

Defendants' Demurrer to the Complaint is overruled.
Defendants' Motion to Strike is denied. Defendants have 20 days to file an answer.